

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

Complainant,

v.

DOCKET NO. 25-14

OAK WAY CARGO, LLC,

Respondent.

_____ /

SUBPOENA DUCES TECUM

**TO: A & P GRANITE DIRECT INC
R/A: ALEXANDRE PEREIRA MUNHOZ
5627 FISHERMANS DR
BRADENTON, FL 34209**

YOU ARE HEREBY COMMANDED to appear at EPGD Attorneys at Law, P.A., 777 SW 37th Ave. Suite 510, Miami, Florida 33135, on March 16, 2026, at 10:00 am, and to have with you at that time and place the following documents, records, or communications listed on Schedule “A,” attached hereto.

These items will be inspected and may be copied at that time. You will not be required to surrender the original items. **You may comply with this subpoena by providing legible copies of the items to be produced to Jennifer S. Roldan via email to jennifer@epgdlaw.com or delivered by mail to EPGD Attorneys at Law, P.A., 777 SW 37th Ave. Suite 510, Miami, Florida 33135 on or before the scheduled date of production, and thereby eliminate your appearance at the time and place specified above.** You may condition the preparation of the copies upon payment in advance of the reasonable cost of preparation. You have the right to object to the production pursuant to this subpoena at any time

before production by giving written notice to the attorney whose name appears on this subpoena. Pursuant to Commission Rule 132, you “may move to quash or modify the subpoena within ten (10) days after service of the subpoena, and a reply to such motion shall be served within seven (7) days thereafter.” 46 C.F.R. § 502.132. **THIS WILL NOT BE A DEPOSITION. NO TESTIMONY WILL BE TAKEN.**

If you fail to appear as specified; furnish the records instead of appearing as provided above; or object to this subpoena, you may be in contempt of Court. You are subpoenaed to appear by the following attorneys and unless excused from this subpoena by the Commission, you shall respond to this Subpoena as directed.

Richard Ambrow
Administrative Law Judge

SCHEDULE "A"

DEFINITIONS AND INSTRUCTIONS

The following definitions shall apply to this Request:

A. "You," or "Your" as used herein means A & P GRANITE DIRECT INC and includes any and all agents, employees, servants, officers, directors, attorneys and any other person or entity acting or purporting to act on its behalf, or any other entity or person under its direct control.

B. "Oak Way Cargo" as used herein means Oak Way Cargo, LLC, and includes any and all agents, employees, servants, officers, directors, attorneys and any other person or entity acting or purporting to act on its behalf, or any other entity or person under its direct control.

C. "Oak Bridge Way" as used herein means Oak Bridge Way, LTDA, and includes any and all agents, employees, servants, officers, directors, attorneys and any other person or entity acting or purporting to act on its behalf, or any other entity or person under its direct control.

D. "Way2Go" as used herein means Way2go Cargo Corp., and includes any and all agents, employees, servants, officers, directors, attorneys and any other person or entity acting or purporting to act on its behalf, or any other entity or person under its direct control

E. "Person" as used herein means any individual, partnership, corporation, association, or other legal entity.

F. "Documents" shall mean books, papers, correspondence, memoranda, electronic records, or other records, whether written, printed, typed, recorded, or stored electronically.

G. "Communications" shall mean any oral or written statement, dialogue, colloquy, discussion or conversation and, also, means any transfer of thoughts or ideas between persons by means of documents and includes any transfer of data from one location to another by electronic or similar means.

H. "Concerning" shall mean, directly or indirectly, relate to, refer to, reflect, mention, describe, pertain to, arise out of or in connection with or in any way legally, logically, or factually be connected with the matter discussed.

I. As used herein, the conjunctions "and" and "or" shall be interpreted in each instance as meaning "and/or" so as to encompass the broader of the two possible constructions, and shall not be interpreted disjunctively so as to exclude any information or documents otherwise within the scope of any Request.

J. When appropriate, the singular form of a word should be interpreted in the plural as may be necessary to bring within the scope hereof any documents which might otherwise be construed to be outside the scope hereof.

K. Any pronouns used herein shall include and be read and applied as to encompass the alternative forms of the pronoun, whether masculine, feminine, neuter, singular or plural, and shall not be interpreted so as to exclude any information or documents otherwise within the scope of the Request.

L. You must produce all Documents within Your possession, care, custody or control that are responsive to any of these Requests. A Document is deemed within Your care, custody or control if You

have the right or ability to secure the document or a copy thereof from any other person having physical possession thereof.

M. All Documents produced pursuant hereto are to be produced as they are kept in the usual course of business and shall be organized and labeled (without permanently marking the item produced) so as to correspond with the categories of each numbered request hereof.

N. Production of Electronically Stored Information (“ESI”) or any electronically stored data shall be in native format unless otherwise agreed. In producing Documents consisting of electronically stored data in machine-readable form in response to any Request, provide such data in a form that does not require specialized or proprietary hardware or software.

O. Each hard copy Document is to be produced, with all non-identical copies and drafts thereof, in its entirety, without alteration, abbreviation or reduction and shall be produced either in the manner they are kept in the usual course of business or organized to correspond with the Request to which they are responsive. If any Document is produced in redacted form, state with particularity the reason(s) it was not produced in full and describe generally those portions of the Document that are not being produced.

P. All Documents that respond, in whole or in part, to any part or clause of any paragraph of these Requests shall be produced in their entirety, including all attachments and enclosures. Only one copy need be produced of Documents that are responsive to more than one paragraph or are identical except for the person to whom it is addressed if You indicate the Persons or group of Persons to whom such Documents were distributed. Documents that in their original condition were stapled, clipped, or otherwise fastened together shall be produced in such form. Please place the Documents called for by each paragraph in a separate file folder or other enclosure marked with Defendants’ name and the paragraph to which such Documents respond, and if any Document is responsive to more than one Request, indicate each Request to which it responds.

Q. If you at any time had possession, custody or control of a Document called for under these Requests and if such Document has been lost, destroyed, purged, or is not presently in your possession, custody or control, you shall describe the Document, the date of its loss, destruction, purge, or separation from possession, custody or control and the circumstances surrounding its loss, destruction, purge, or separation from possession, custody or control.

R. Return an executed copy of the Business Records Certification included at the end of this Schedule “A” together with any Documents you deliver or make available for copying to EPGD Attorneys at Law, P.A. in response to this Subpoena.

DOCUMENTS REQUESTED

1. Documents prepared or received by you concerning shipments involving Oak Way Cargo to or from any port in the United States, including but not limited to, booking confirmations, arrival notices, pre-arrival notices, bills of lading, house bills of lading, master bills of lading, container manifests, sea waybills, shipping instructions, and cargo receipts that include or reference Oak Way Cargo.
2. Communications between You and Oak Way Cargo concerning booking, arrangement, payment for, or execution of shipments to or from any port in the United States involving Oak Way Cargo and, including but not limited to all emails, letters, memos, or text messages.

3. Communications between You and Oak Bridge Way, concerning booking, arrangement, payment for, or execution of shipments to or from any port in the United States involving Oak Way Cargo and Way2Go, including but not limited to all emails, letters, memos, or text messages.
4. Records concerning payments made to Oak Way Cargo, related to any shipments to or from any port in the United States, including but not limited to, invoices, bills, bank transfer receipts, wire confirmations, or payment confirmations.
5. Documents prepared or received by you including Way2Go's Federal Maritime Commission (FMC) license number #027779, name, or logo in connection with or concerning shipments to or from any port in the United States, involving Oak Way Cargo.
6. Written agreements between You and Oak Way Cargo that describe any services provided by Oak Way Cargo or identify Oak Way Cargo's role in executing any services related to shipments to or from any port in the United States.
7. Documents sufficient to show Automated Manifest System (AMS) filings for Your shipments, to or from any port in the United States, involving Oak Way Cargo from January 1, 2025, to today.
8. Bills of lading, waybills, invoices, emails, payment confirmations, arrival notices, and any other records related to the shipment identified by HBL: WTGFRIOPEF258394.
9. Bills of lading, waybills, invoices, emails, payment confirmations, arrival notices, and any other records related to any shipment initiated with Way2Go that was later assumed, taken over by, or released by Oak Way Cargo or Oak Bridge Way.

BUSINESS RECORDS CERTIFICATION

My name is _____, and I am personally acquainted with the facts herein stated:

I am the custodian of the records or duly authorized representative at A & P GRANITE DIRECT INC.

These records are retained by us in the regular course of business, and it was in the regular course of business for an employee or representative of our facility with knowledge of the act, event, condition, opinion, or diagnosis recorded to make the records or to transmit the information thereof to be included in such record; and the record was made at or near the time of the act, event, condition, opinion, or diagnosis. The records attached hereto are the original or exact duplicates of the original. The attached documents represent a complete production of all records contained within the file requested.

Under the penalty of perjury under the laws of the United States of America, I declare that the foregoing is true and correct.

Date

Signature of Custodian

Printed Name